



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

JAN - 4 1995

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11367

EXPIRATION DATE: February 1, 1995

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Miles Incorporated, Pittsburgh, Pennsylvania.
2. PURPOSE AND LIMITATION: This exemption authorizes the one-time transportation in commerce of a specially designed pressure vessel containing Sodium. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Sections 173.212.
5. BASIS. This exemption is based on Miles Incorporated's emergency application dated December 7, 1994 and additional information dated December 14, 1994, submitted in accordance with 49 CFR 107.113 and a determination that it is necessary to preclude a serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	Identification number	Packing Group
Sodium	Division 4.3	UN 1428	II

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. PACKAGING - Packaging prescribed is a steel pressure vessel designed and constructed in accordance with Section VIII of the ASME Code with a maximum allowable working pressure of 150 psig. The vessel must conform with drawings on file with the Office of Exemptions and Approvals.
- b. MARKING - In addition to the requirement of Part 172, the packaging must be marked "DOT-E 11367"

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8. SPECIAL PROVISIONS.

a. The pressure vessel authorized by this exemption must be shipped in a strong outside packaging which will provide protection during transportation.

b. The Sodium must be shipped with a pad of Argon gas or other inert material.

c. The vessel authorized by this exemption must be shipped in compliance with the requirements of 49 CFR 177.838.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

10. MODAL REQUIREMENTS:

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation laws 49 U.S.C. 501 et seq:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable.

(49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA